

Urmila Awana vs Ramkaran Sradhna on 19 January, 2019

Bench: Chief Justice, G R Moolchandani

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

D.B. Civil Miscellaneous Appeal No. 6124/2017

Urmila Awana D/o Shree Dharmpal Awana, B/c Gurjar, R/o Plot
No. 202, Vardhman Apartment, Narayan Vihar, Mansarovar
Jaipur Permanent Address Plot No. E-155, 200 Feet Bypass, Ges
Godam, Oxford School, Dronpuri, Ajmer Road Jaipur, P.s. Karni
Vihar

----Appellant

Versus

Ramkaran Sradhna S/o Shree Hariram Sradhna B/c Gurjar, R/o
Gram Basda, Tehsil Bansur, Distt. Alwar

----Respondent

For Appellant(s) : Mr. Ishwar Tiwari, Adv.

For Respondent(s) :

HON'BLE THE CHIEF JUSTICE
HON'BLE MR. JUSTICE G R MOOLCHANDANI

Judgment

19/01/2019

1. None appears for the respondent inspite of service effected.
 2. We have read the petition filed by the appellant seeking decree of divorce. Meaningfully read case of the appellant is to declare the marriage voidable on account of she being married with respondent when she was a minor and on attaining the age of majority she exercised the option to have the marriage to declare voidable.
 3. As per the averments she had never co-habited with the respondent as his wife.
- (2 of 2) [CMA-6124/2017]
4. Unfortunately for the appellant, Counsel drafted the petition invoking Section 13 of the Hindu Marriage Act, 1955. This has led to a truncated evidence being led by the appellant.

5. With consent of the Counsel for the appellant we dispose of the appeal setting aside the impugned order dated 22.09.2017 dismissing the petition seeking decree of divorce filed by the appellant. We restore the petition for adjudication afresh and simultaneously grant appellant permission to seek amendment of the petition. The amendments would incorporate that the petition is under Section 12 of the Hindu Marriage Act, 1955. Such pleadings of fact as would be necessary would be permitted to be incorporated in the amendment by the learned Judge, Family Court. Thereafter a decision would be taken in light of amended petition brought on record.

(G R MOOLCHANDANI),J (PRADEEP NANDRAJOG),CJ N.Gandhi/TN-25 Powered by TCPDF (www.tcpdf.org)